

HEADNOTE

“1. In the absence of any functional interdependencies that establish a synergistic effect, a plurality of routine modifications that the skilled person would each take as a next step and as a matter of routine, amount to a mere aggregation of features that is obvious.

2. In case auxiliary requests limit the scope of protection of the patent progressively, and the auxiliary request that limits the scope furthest is not considered inventive, the previous auxiliary requests are also obvious as these contain less distinguishing features.”

COURT

Local Division in The Hague

PROCEEDINGS

Interim conference (R.105.5)

PATENT

EP2061230

Portable terminal, information processing apparatus, content display system and content display method

KEYWORDS

Inventive step

Obviousness

Routine modifications

Auxiliary requests

Scope limitation

mere aggregation of features

SUMMARY

The Local Division in The Hague ruled on an interim conference. The patent at issue relates to a portable terminal, information processing apparatus, content display system and content display method. According to the headnotes of the decision, where a skilled person would routinely take multiple modifications as next steps without any functional interdependencies that create a synergistic effect, such an aggregation of features is considered obvious. Where auxiliary requests progressively narrow the scope of protection and the most restrictive version is found not to be inventive, all preceding auxiliary requests are also obvious because they contain fewer distinguishing features.